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Frank is a passenger on a trolley whose driver has just shouted that the trolley's brakes have failed, and who then died of the shock. On the track ahead are five people; the banks are so steep that they will not be able to get off the track in time. The track has a spur leading off to the right, and Frank can turn the trolley onto it. Unfortunately there is one person on the right-hand track. Frank can turn the trolley, killing the one; or he can refrain from turning the trolley, letting the five die.

Here it seems as though Frank is faced with a choice between letting five die, and killing one — so his choice seems, in this respect, just like David's (the surgeon's). But it seems as though it **is** morally permissible for Frank to turn the trolley, even though it is **not** morally permissible for David to cut up the healthy specimen.

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